



CHAPTER lxxxvi.

An Act to empower the corporation of Birkenhead to provide and work motor omnibuses to make further provision with respect to the ferries of the Corporation and for other purposes. A.D. 1914.
[31st July 1914.]

WHEREAS the borough of Birkenhead in the county palatine of Chester (in this Act called "the borough") is a county borough under the management and control of the mayor aldermen and burgesses of the borough (in this Act called "the Corporation") :

And whereas it is expedient to empower the Corporation to provide and work as part of their tramway undertaking authorised by the Birkenhead Tramways Acts 1878 and 1879 and the Birkenhead Corporation Acts 1897 and 1899 motor omnibuses within and outside the borough and that such powers in connection therewith should be conferred upon them as by this Act provided :

And whereas an estimate has been prepared by the Corporation in relation to the provision of such motor omnibuses and purposes incidental thereto and such estimate amounts to the sum of twenty thousand pounds :

And whereas the works included in such estimate are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas it is expedient to extend the powers of the Corporation in relation to their ferries undertaking :

And whereas the cost of the works authorised by the Birkenhead Corporation Water Act 1907 has proved to be greater than was anticipated and it is expedient that the amount which may be borrowed prior to the completion of the

A.D. 1914. Alwen Reservoir authorised by that Act should be increased as
— by this Act provided :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed and the promotion of the Bill has received the approval of the Local Government Board :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

Short title. 1. This Act may be cited as the Birkenhead Corporation Act 1914.

Incorporation of Acts. 2. The Lands Clauses Acts (except the provisions thereof with respect to the purchase and taking of lands otherwise than by agreement and section 127 of the Lands Clauses Consolidation Act 1845) so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act are hereby incorporated with this Act.

Interpretation. 3. In this Act unless the subject or context otherwise requires the several words and expressions to which by the Acts wholly or partially incorporated with this Act meanings are assigned shall have the same respective meanings And—

“The borough” means the county borough of Birkenhead ;

“Motor omnibus” means any stage carriage moved by mechanical power including in that expression steam electrical and every other motive power not being animal power ;

“The tramway undertaking” means the tramway undertaking of the Corporation for the time being authorised ;

“The ferries undertaking” means the ferries undertaking of the Corporation for the time being authorised ;

“The borough fund” “borough rate” and the “interest rate” mean respectively the borough fund the borough rate and the interest rate of the borough.

4.—(1) The Corporation as part of the tramway undertaking may provide (but shall not manufacture) motor omnibuses and may run the same within the borough and along the following routes outside the borough (namely):—

A.D. 1914.

Power to
provide and
work motor
omnibuses.

In the parishes of Bidston and Moreton—

Route No. 1 Commencing in Hoylake Road at the boundary of the borough and the parish of Bidston and passing along that road direct to the junction of Hoylake Road and the road from Moreton to Upton Village including the roads forming a triangle in Moreton Village:

In the parishes of Bidston and Upton—

Route No. 2 Commencing in Upton Road at the boundary of the borough and the parish of Bidston and passing along that road and Ford Road to Upton Village as far as the junction with the road leading from Upton to Moreton:

In the parish of Prenton—

Route No. 3 Commencing in Prenton Road West at the boundary of the borough and the parish of Prenton passing along that road to Storeton Road and in a northerly direction along Storeton Road to the boundary of the borough and the parish of Prenton:

In the parishes of Prenton Landican and Woodchurch—

Route No. 4 Commencing in Woodchurch Road at the boundary of the borough and the parish of Prenton and passing along Woodchurch Road to the Horse and Jockey Inn at Woodchurch:

In the urban districts of Higher Bebington and Lower Bebington—

Route No. 5 Commencing in Bebington Road at the boundary of the borough and the urban district of Higher Bebington and passing along that road and Old Chester Road to Bebington Road in Lower Bebington thence along Bebington Road under the railway bridge along Greendale Road Wood Street and Riverside and also along Bolton Road and along Bebington Road from the railway bridges at Bebington Station to the junction of that road with New Chester Road at the Toll Bar Corner:

A.D. 1914.

In the urban districts of Lower Bebington and Bromborough—

Route No. 6 Commencing in New Chester Road at the boundary of the borough and the urban district of Lower Bebington and passing along that road direct to Bromborough Cross in the village of Bromborough:

And may demand and take the like tolls fares and charges for the conveyance therein of passengers and parcels (not exceeding fifty-six pounds in weight) as they are for the time being able to demand and take for passengers travelling on and parcels conveyed by the tramways of the Corporation.

(2) The Corporation may purchase by agreement take on lease and hold lands and buildings and may erect on any lands for the time being belonging to them in connection with the tramway undertaking omnibus carriage and motor houses depôts buildings and sheds and may provide such plant appliances and conveniences as may be requisite or expedient for the establishment running and equipment of such motor omnibuses but the Corporation shall not create or permit any nuisance on such lands.

(3) The Corporation may make byelaws for regulating the travelling and for the prevention of nuisances in their motor omnibuses Provided that the provisions of the Tramways Act 1870 with respect to byelaws shall so far as applicable apply to any byelaws made under this subsection.

(4) The Corporation and any local or road authority within whose jurisdiction the Corporation propose to run the motor omnibuses by this Act authorised may from time to time enter into and carry into effect agreements with regard to the running of such omnibuses within the jurisdiction of any such authority.

(5) Every motor omnibus moved by electrical power shall be so equipped and worked as to prevent any interference with telegraphic communication by means of any telegraphs of the Postmaster-General.

(6) The Corporation shall perform in respect of the motor omnibuses provided under this section all the services in regard to the conveyance of mails which are prescribed by the Conveyance of Mails Act 1893 in the case of a tramway as defined by that Act and authorised as in that Act stated.

As to
consent of
local and

5.—(1) The powers conferred by this Act of running motor omnibuses outside the borough shall not be exercised by the

Corporation in any district except with the consent under seal of the local authority and of the road authority which consent any such local or road authority shall not unreasonably withhold and any such consent may be given by any such local authority or road authority upon and subject to such reasonable terms and conditions as may be agreed between any such authority and the Corporation.

A.D. 1914.
road authorities.

(2) Such terms and conditions shall not include any provision for the payment by the Corporation to the road authority of a sum in respect of the cost of widening and improving the roads to be used by the motor omnibuses so as to make them suitable for such user but may include a provision for the payment by the Corporation to the road authority of sums in respect of the extra expense of maintaining the said roads.

(3) If any question shall arise as to whether such consent has been unreasonably withheld or as to whether such terms and conditions are unreasonable the same shall be determined under the provisions of the Arbitration Act 1889 and the terms and conditions so agreed or determined as aforesaid may and shall be observed and performed by the parties to the agreement or the arbitration as the case may be.

(4) In this section---

“Local authority” means the council of any borough or urban or rural district in which the road along which the motor omnibuses are proposed to be run is situate;

“Road authority” means and includes the Cheshire County Council and the council of any borough or urban or rural district in whom any such road is vested or by whom it is maintained or by whom a contribution towards the maintenance repair and reasonable improvement of such road is required by law to be made;

“District” means the area under the jurisdiction of a local authority or road authority;

“Extra expense” means the amount by which the actual cost of maintaining a road shall exceed the amount which would have been the cost of maintaining such road up to the standard required by the ordinary traffic thereon if motor omnibuses had not been run thereon in exercise of the powers of this Act.

A.D. 1914.

Motor omnibuses to be part of tramway undertaking.

6. All expenditure in respect to motor omnibuses shall be defrayed and all receipts shall be applied as if the motor omnibuses were part of the tramway undertaking but such expenditure and receipts shall (so far as is reasonably practicable) be distinguished from the receipts and expenditure upon or in connection with the remainder of such undertaking.

For protection of Wallasey Corporation.

7. In the event of the mayor aldermen and burgesses of the county borough of Wallasey (in this section called "the Wallasey Corporation") introducing a Bill for an Act to confer powers on the Wallasey Corporation to provide and run a service of motor omnibuses into and within the parish of Moreton and any portion of the parish of Bidston other than the portion thereof which is added to the borough under any order made in pursuance of the application which has been made by the Corporation to the Local Government Board for the alteration of the boundaries of the borough the Corporation shall not oppose the granting of such powers provided such powers are identical with those contained in this Act but nothing herein contained shall prejudice the opposition of any other body to any application for such powers.

Provision of shelters and waiting-rooms.

8. The Corporation may erect and maintain shelters and waiting-rooms for the accommodation of passengers using their motor omnibuses and may with the consent of the local authority and road authority use for that purpose portions of the public streets or roads :

Provided that no shelters or waiting-rooms shall be erected or maintained in any street or road so as to cause interference with or render less convenient the access to or exit from any railway station.

Amendment of section 20 of Birkenhead Corporation Act 1891.

9. Section 20 (Powers of Corporation to perform services in respect of goods traffic) of the Birkenhead Corporation Act 1891 shall extend to enable the Corporation themselves to deliver within the borough any goods articles and things which have been conveyed by their ferry boats and which may not be removed or collected within a reasonable period by the owner or consignee of such goods articles and things and to charge and recover reasonable sums for such delivery and the said sums shall be carried to the revenue account of the ferries undertaking.

Amendment of section 69 of Act of 1907.

10. The proviso to section 69 (Power to borrow) of the Birkenhead Corporation Water Act 1907 is hereby repealed but

the Corporation shall not borrow more than one million pounds under the provisions of that section until the Alwen Reservoir and line of pipes for conveying water therefrom to Birkenhead and the accessory works have been completed. A.D. 1914.

11.—(1) The Corporation may in addition to any moneys which they are now authorised to borrow or which they may be authorised to borrow under the provisions of the Public Health Acts or any public general Act borrow at interest for the purposes set forth in the first column of the following table on the security of the borough fund and borough rate or of all or any of the rates tolls and revenues of the Corporation from whatever source derived any sums not exceeding the respective sums set forth in the second column thereof and all moneys borrowed under the powers of this subsection shall be repaid within the respective periods set forth in the third column of the said table (that is to say):—

Power to borrow and repayment of borrowed moneys.

Purpose.	Amount.	Period for Repayment.
(A) For paying the costs charges and expenses of this Act as herein-after defined.	The sum requisite.	5 years from the passing of this Act.
(B) For the provision of motor omnibuses	£ 17,000	5 years from the date or dates of borrowing.
(C) For the erection of depôts shelters and other buildings.	3,000	30 years from the date or dates of borrowing.

(2) The Corporation may also with the sanction of the Local Government Board borrow on the said security or such other security as that Board may prescribe such further moneys as the Corporation may require for any of the purposes of this Act and all moneys borrowed under the powers of this subsection shall be repaid within such periods not exceeding sixty years as the said Board may sanction.

12. The Corporation may raise all or any sums which they are authorised to borrow under this Act by mortgage of the borough fund and borough rate or of all or any of the rates tolls and revenues of the Corporation from whatever source derived.

Mode of raising money.

13. The sums required for payment of interest on or for or towards repayment of moneys borrowed on mortgage under this Act shall be payable out of the revenue of the tramway

As to repayment of moneys.

A.D. 1914. ——— undertaking and if and so far as that revenue proves insufficient the borough fund and borough rate or out of the interest rate as the case may be.

Incorporating certain provisions of Birkenhead Corporation Act 1897.

14. In the event of the Corporation resolving to raise by mortgage any moneys which they are authorised to borrow under this Act the provisions contained in the sections of the Birkenhead Corporation Act 1897 the numbers and marginal notes of which are set forth in this section are hereby incorporated with this Act and this Act shall be read and construed as if those provisions had been expressly re-enacted herein (that is to say):—

Section 48 (Repayment of moneys hereafter borrowed under existing powers);

Section 49 (General provisions as to sinking funds);

Section 51 (Annual return to Local Government Board);

Section 58 (Application of certain provisions of Act of 1881); and

Section 59 (Certain provisions of Public Health Act as to borrowing not to apply).

Power to borrow under Local Loans Act 1875.

15. The Corporation if they think fit may borrow the moneys which they are by this Act authorised to borrow or any part thereof under the powers and subject to the provisions of the Local Loans Act 1875 by means of a loan or loans to be raised by the issue of debentures or annuity certificates or partly in one way and partly in another.

Any moneys borrowed in manner by this section authorised for any of the purposes of this Act shall be a charge upon and shall be paid out of the same rates tolls and revenues as they would be charged upon and paid out of if raised by mortgage under this Act and such rates tolls and revenues shall in each case be the local rate within the meaning and for the purposes of the Local Loans Act 1875.

Every such loan shall be discharged within the prescribed period and sections 48 49 and 51 of the Birkenhead Corporation Act 1897 shall mutatis mutandis apply to any sinking fund provided by the Corporation for the repayment of any moneys so borrowed by them under the Local Loans Act 1875 in lieu of the provisions of sections 15 and 16 of that Act.

16.—(1) The Corporation shall have power—

A.D. 1914.

(A) To borrow for the purpose of paying off any moneys previously borrowed under this Act which are intended to be forthwith repaid; or

Power to
re-borrow

(B) To borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Corporation in repaying moneys previously borrowed under this Act and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the prescribed period which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(A) By instalments or annual payments; or

(B) By means of a sinking fund; or

(C) Out of moneys derived from the sale of land; or

(D) Out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

17. Money borrowed by the Corporation under this Act shall be applied only for the purposes of this Act for which such money is authorised to be borrowed and to which capital is properly applicable.

Application
of money
borrowed.

18. The provisions of the Municipal Corporations Acts relating to the keeping and auditing of accounts and the accounts kept of sums of money received and paid under those Acts shall extend to the keeping and auditing of accounts and to the accounts kept of sums of money received and paid under this Act.

Audit of
accounts.

[Ch. lxxxvi.] *Birkenhead Corporation Act, 1914.* [4 & 5 GEO. 5.]

A.D. 1914.

Expenses of
execution of
Act.

19. All expenses incurred by the Corporation in carrying into execution the provisions of this Act with respect to which no other provision is made may be defrayed out of the revenue of the tramway undertaking or of the ferries undertaking as the case may be.

Costs of
Act.

20. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed and ascertained by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the revenue of the tramway undertaking and of the ferries undertaking or out of both of them in such proportions as the Corporation may by resolution determine or out of the money to be borrowed under this Act for that purpose.

Printed by EYRE and SPOTTISWOODE, Ltd.,

FOR

FREDERICK ATTERBURY, Esq., C.B., the King's Printer of Acts of Parliament

And to be purchased, either directly or through any Bookseller, from
WYMAN AND SONS, LTD., 29, BREAMS BUILDINGS, FETTER LANE, E.C., and
28, ABINGDON STREET, S.W., and 54, ST. MARY STREET, CARDIFF; or
H.M. STATIONERY OFFICE (SCOTTISH BRANCH), 23, FORTH STREET, EDINBURGH; or
E. PONSONBY, LTD., 116, GRAFTON STREET, DUBLIN;
or from the Agencies in the British Colonies and Dependencies,
the United States of America, the Continent of Europe and Abroad
T. FISHER UNWIN, LONDON, W.C.